

casts for current-event reporting, bona fide review, teaching or research.

But “fair dealing” is not a magic incantation. Ask why the clip is necessary, how much you genuinely need, whether you are analysing or reporting it rather than merely using it for entertainment, and whether the surrounding discussion clearly supplies that purpose.

A practical rule for editors is: use the minimum material necessary to make the editorial point, attribute the source where appropriate, and seek legal advice when a clip is central, lengthy or commercially sensitive.

Fact-check allegations before publication

Podcasters often underestimate the risk created by casual conversation. A guest may confidently accuse a company of fraud, call somebody a thief, repeat workplace gossip or make claims about a former partner. Publishing the recording can turn an offhand statement into a much larger problem.



Criminal defamation remains part of Indian law under Section 356 of the Bharatiya Nyaya Sanhita. The section defines defamation and contains exceptions, including truth where publication is for the public good, certain good-faith opinions concerning public conduct or public questions, substantially true reports of court proceedings, and other good-faith situations. Defamation under Section 356(2) can attract simple imprisonment up to two years, a fine, both, or community service.

The production lesson is simple: do not confuse “the guest said it” with “we can safely publish it”.

When an episode contains a serious allegation:

- **Step 1:** Mark the exact statement during editing.
- **Step 2:** Ask what evidence supports it.
- **Step 3:** Separate fact from opinion.
- **Step 4:** Verify documents, dates and quotations independently.
- **Step 5:** Contact the person or organisation criticised for a response when fairness and circumstances require it.

■ **Step 6:** Preserve your notes, correspondence and source material.

■ **Step 7:** Escalate high-risk allegations for legal review before publishing.

Changing “X stole money” to “I feel X stole money” does not automatically remove risk. An accusation does not become harmless simply because it is introduced as an opinion.

Handle privacy like a publisher

Podcasts can accidentally reveal far more than intended: a guest’s phone number on a screen, a child’s school, a home address mentioned conversationally, private medical information, an unpublished workplace dispute or metadata attached to shared documents.

Minimise first. If information is not necessary for the episode, do not collect or publish it.

India’s Digital Personal Data Protection Act, 2023 and the Digital Personal Data Protection Rules, 2025 are being brought into force in phases. As of August 2026, many of the operational provisions most relevant to routine consent, data-fiduciary obligations, individual rights and processing of children’s data have not yet commenced. The November 2025 commencement notification schedules Sections 3–5, most of Section 6, Sections 7–17 and several other provisions for eighteen months after Gazette publication. The Rules similarly put many operational provisions on an eighteen-month timetable.

Podcasters should therefore not describe the DPDP regime as though every provision is already fully operational.

That transition period is a reason to build good systems now. Tell newsletter subscribers what information you collect and why. Restrict access to guest phone numbers and addresses. Do not dump release forms into a publicly shared production folder. Delete unnecessary copies when there is no reason to keep them, while preserving material you genuinely need for legal, contractual or editorial records.

Take extra care with minors and vulnerable guests

A child may be technically capable of giving a brilliant interview and still be unable to anticipate what permanent online publication means years later.

For minors, involve a parent or lawful guardian, obtain clear written permission, explain where the content will appear, and avoid unnecessary identifying details. Consider whether the story can be told without naming a school, neighbourhood, daily route or other information that makes the child easier to locate.

The DPDP Act defines a child as someone under eighteen and contains specific provisions concerning processing children’s personal data, though, as noted above, the key operational provisions are on a phased commencement timetable as of August 2026.